[BDSA Reg. 2 (Formerly NPA Reg. 2); Amendment 5, of May 9, 1958]

BDSA REG. 2—BASIC RULES OF THE PRIORITIES SYSTEM

REG. 2, AMDT. 5—LIMITATION ON USE AND DISPOSITION OF MATERIALS ACQUIRED WITH PRIORITIES ASSISTANCE

This amendment is found necessary and appropriate to promote the national defense and is issued pursuant to the Defense Production Act of 1950, as amended. In the formulation of this amendment, consultation with industry representatives has been rendered impracticable because this amendment applies to all trades and industries.

This amendment affects BDSA Reg. 2 (formerly NPA Reg. 2) as amended by amendment 2 dated June 1, 1954, and amendment 4 dated January 11, 1957, by amending paragraph 17 of said regulation in the following respects. List B of said regulation is deleted. Persons who acquire materials with a rating or a specific authorization or a directive of BDSA are required to use, so far as possible, such materials, or the products into which such materials are incorporated, to fulfill other priority orders to the extent that such materials or products cannot be used for the purpose for which priority assistance was given. In certain cases, cancellations of priority ratings on unfilled rated purchase orders are required. Special rules relating to use and disposition of primary nickel are eliminated, and this material is made subject to the general rules relating to use and disposition of materials.

Section 17 of BDSA Reg. 2 (formerly NPA Reg. 2) dated March 23, 1953, as amended by amendment 2 dated June 1, 1954, is hereby amended to read as follows:

Sec. 17. *Use or disposition of material acquired under this regulation.* (a) Any person who gets material with a rating or through a specific authorization or a directive of BDSA must, if possible, use or dispose of it (or of the product into which it has been incorporated) for the purpose for which the assistance was given. However, material obtained with any DO rating may be used to fill any DX rated order. Physical segregation is not required as long as the restrictions applicable to any specific lot of material or product are observed with respect to an equivalent amount of the same material or product.

(b) When a material acquired with a rating or through a specific authorization or directive of BDSA, or when a product into which such material has been incorporated, can no longer be used for the purpose for which the priority assistance was given, the following rules apply:

(1) To the extent that such material or product can be used to fill other orders then on hand which are accompanied by a rating or a specific authorization or directive of BDSA, and with respect to which such holder has not already received other material of the same kind by the use of priority assistance for the purpose of filling such other orders, it must be so used.

(2) To the extent that such material or product can be used for the purpose specified in subparagraph (1) of this paragraph but where material of the same kind to fill such other orders has been ordered by the use of priority assistance and has not been received, it must be so used, and the provisions of section 12 (b) apply.

(3) To the extent that such material or product cannot be used for the purpose and in the manner specified in subparagraphs (1) and (2) of this paragraph, the holder of such material or product may use it himself or dispose of it, unless otherwise ordered or directed by BDSA.

List B of BDSA Reg. 2 and the footnote to list B are deleted.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. 2154)

This amendment shall take effect May 9, 1958.

BUSINESS AND DEFENSE SERVICES ADMINISTRATION,
H. B. MCCOY,
Administrator.

[F. R. Doc. 58-3615; Filed, May 13, 1958; 8:50 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1633]

[1119031]

CALIFORNIA AND NEVADA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 4203 OF APRIL 14, 1925, WHICH WITHDREW LANDS IN AID OF CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 4203 of April 14, 1925, which withdrew for classification the public lands within such of the following-described areas described in the act of Congress approved February 20, 1925 (43 Stat. 952) as were not then parts of any national forest

MOUNT DIABLO MERIDIAN

T. 37 N., R. 1 E.,
Sec. 1.
Ts. 38, 39, 40, 41, 42, 43 and 44 N., R. 1 E.
T. 45 N., R. 1 E.,
Secs. 19, 20, 29, and 30.
Ts. 37, 38, 39, 40, 41 and 42 N., R. 2 E.
T. 37 N., R. 3 E.
Sec. 1, N½;
Secs. 3, 4, 5, 6, 9, 10, 15, and 16.
Ts. 38, 39 and 40 N., R. 3 E.
T. 22 N., R. 4 E.,
Secs. 1, 12, and 13.
T. 23 N., R. 4 E.
T. 37 N., R. 4 E.,
Sec. 6, N½.
T. 38 N., R. 4 E.,
Secs. 6, 7, and 8.
T. 39 N., R. 4 E.,
Secs. 30 and 31.
Ts. 40 and 41 N., R. 4 E.
T. 20 N., R. 6 E.,
Secs. 1, 2, 3, 10, 11, 12, 13, 14, 15, 22, 23, 24, 25, 26, 27, 34, 35, and 36.
Ts. 26 and 27 N., R. 6 E.
Ts. 20, 21, 26 and 27 N., R. 7 E.
Ts. 21 and 27 N., R. 8 E.
T. 17 N., R. 9 E.,
Secs. 13, 24, 25, and 36.
T. 18 N., R. 9 E.,
Secs. 28 and 29.
T. 24 N., R. 9 E.,
Secs. 10, 11, 16, 22, 23, and 24.
T. 27 N., R. 9 E.,
Secs. 34, 35, and 36.
T. 14 N., R. 10 E.,
Secs. 1, 12, 13, 24, and 25.
T. 15 N., R. 10 E.,
Secs. 13, 24, 25, and 36.
T. 16 N., R. 10 E.,
Secs. 1, 2, 11, 13, 23, 24, 25, 26, 27, and 29.
Ts. 17 and 18 N., R. 10 E.
T. 23 N., R. 10 E.,
Sec. 1, N½.
T. 24 N., R. 10 E.,
Secs. 19, 28, 29, and 36.
T. 26 N., R. 10 E.,
Secs. 31, 32, and 33.
Ts. 14, 16, 17, 22, 23 and 24 N., R. 11 E.
T. 29 N., R. 11 E.,
Secs. 25 to 36, inclusive.
T. 10 N., R. 12 E.,
Secs. 1, 2, 3, 10 to 15, inclusive, 22 to 29, inclusive, 32 to 36, inclusive.
T. 11 N., R. 12 E.,
Secs. 25 to 29, inclusive, 32 to 36, inclusive.
Ts. 22 and 28 N., R. 12 E.
T. 29 N., R. 12 E.,
Secs. 26 to 35, inclusive.
T. 8 N., R. 13 E.,
Secs. 1, 2, 3, 10, 11, 12, 13, 14, 15, 22, 23, 24, 25, 26, 27, 34, 35, and 36.
Ts. 9, 10, 11, 21, 22 and 23 N., R. 13 E.
T. 4 N., R. 14 E.,
Secs. 1, 2, 11, 12, 13, 14, 23, 24, 25, and 26.
T. 5 N., R. 14 E.,
Secs. 1, 2, 11, 12, 13, 14, 23, 24, 25, 26, 35, and 36.
T. 6 N., R. 14 E.,
Secs. 1, 2, 3, 4, 9 to 16, inclusive, 21 to 28, inclusive, 33 to 36, inclusive.
Ts. 7 and 8 N., R. 14 E.
T. 20 N., R. 14 E.,
Secs. 9, 16, 21 to 24, inclusive.
T. 21 N., R. 14 E.,
Secs. 5, 6, 7, 8, 17, 18, 19, 20, 29, 30, 31, and 32.
T. 22 N., R. 14 E.,
Secs. 29, 30, 31, and 32.
T. 23 N., R. 14 E.,
Secs. 7, 16 to 21, inclusive, 28, 29, 30, and 33.
T. 2 N., R. 15 E.,
Secs. 1 to 12, inclusive.
Ts. 18, 19 and 20 N., R. 15 E.
T. 2 N., R. 16 E.,
Secs. 2 to 10, inclusive, 15, 16, and 21.
Ts. 18, 19 and 20 N., R. 16 E.
T. 25 N., R. 16 E.,
Sec. 15, N½;
Sec. 16.
Ts. 18, 19 and 20 N., R. 17 E.
T. 12 N., R. 18 E.,
Secs. 3 to 11, inclusive, 14 to 23, inclusive, 26 to 34, inclusive.
T. 13 N., R. 18 E.,
Fractional secs. 31 and 32 in California;
Secs. 1, 2, 3, 9 to 16, inclusive, 21 to 27, inclusive, 34, 35, and 36 in Nevada.
Ts. 14 and 15 N., R. 18 E., in Nevada.
T. 17 N., R. 18 E., Nevada,
Secs. 4, 5, and 6.
T. 18 N., R. 18 E., California and Nevada.
T. 13 N., R. 19 E., Nevada,
Secs. 5, 6, 7, 8, 17, 18, 19, 20, 29, 30, 31, and 32.
T. 14 N., R. 19 E., Nevada,
Secs. 4, 5, 6, 7, 8, 9, 16, 17, 18, 19, 20, 21, 28, 29, 30, 31, 32, and 33.
T. 15 N., R. 19 E., Nevada,
Secs. 4, 5, 6, 7, 8, 9, 16, 17, 18, 19, 20, 21, 28, 29, 30, 31, 32, and 33.

T. 1 S., R. 16 E.,
Secs. 1 to 5, inclusive, 8 to 15, inclusive, 22 to 27, inclusive, 34, 35, and 36.
Ts. 39, 40, 41, 42, 43 and 44 N., R. 1 W.
T. 45 N., R. 1 W.
Secs. 19 to 36, inclusive.
Ts. 39, 40, 41, 43 and 44 N., R. 2 W.
Ts. 39 and 40 N., R. 3 W.
T. 43 N., R. 3 W.,
Secs. 1, 2, 13, 14, 15, 16, 20, 21, 22, 23, and 24.
T. 37 N., R. 4 W.
T. 38 N., R. 4 W.,
Secs. 1, 2, 3, 10 to 17, inclusive, 20, 22, 27, 28, 29, 31, 32, and 33.
T. 39 N., R. 4 W.
T. 40 N., R. 4 W.
Secs. 2 to 6, inclusive, 10 to 15, inclusive, 19 and 22 to 36, inclusive.
Ts. 41 and 42 N., R. 4 W.
T. 36 N., R. 5 W.,
Secs. 1 to 11, inclusive, 15, 16, and 17.
Ts. 37, 38, 39 and 40 N., R. 5 W.
T. 41 N., R. 5 W.,
Secs. 1, 9 to 16, inclusive, 21 to 28, inclusive, 33, 34, 35, and 36.
T. 42 N., R. 5 W.,
Sec. 36.
T. 41 N., R. 7 W.,
Secs. 28 and 29.
T. 40 N., R. 9 W.,
Secs. 4 and 5.

is hereby revoked so far as it affects any lands other than the following-described lands:

MOUNT DIABLO MERIDIAN

T. 41 N., R. 1 E.,
Sec. 24, SW¼SW¼.
T. 37 N., R. 3 E.,
Sec. 10, NE¼NW¼, N½SE¼, and SE¼SE¼;
Sec. 15, S½NW¼ and SW¼.
T. 16 N., R. 10 E.,
Sec. 13, lots 3 to 10, inclusive, S½SE¼, and NE¼SE¼;
Sec. 23, lots 9 to 15, inclusive.
T. 17 N., R. 10 E.,
Sec. 21, W½SE¼NE¼;
Sec. 34, part of N½NW¼ within old Mineral Lot 41.
T. 18 N., R. 10 E.,
Sec. 29, lots 5 and 8;
Sec. 31, lots 4 to 7, inclusive, lots 9 and 10;
Sec. 32, lot 1.
Also those parts of lot 42 in sections 29, 31, and 32 not embraced in M. S. 76 and 77.
T. 14 N., R. 11 E.,
Sec. 15, lots 1 to 3, inclusive, S½ of lot 5, and S½ of lot 6;
Sec. 19, fractional part of SE¼ except M. S. 58, 59, and 63;
Sec. 20, fractional E½NE¼NE¼;
Sec. 21, lots 2, 3, 5, 7, to 15, inclusive.
T. 17 N., R. 11 E.,
Sec. 32, W½SW¼;
Sec. 34, N½ and S½SW¼.
T. 20 N., R. 15 E.,
Sec. 6, E½SE¼.
T. 20 N., R. 17 E.,
Sec. 24, NW¼SE¼.
T. 13 N., R. 18 E., Nevada,
Sec. 35, lots 4 and 5, E½E½, NW¼SE¼;
Sec. 26, SE¼SE¼.

The areas described aggregate approximately 2,477.46 acres.

2. All the lands in Nevada released from withdrawal by this order and most of those in California have been included in national forests. The following lands in California are hereby opened to filing of applications, selections and locations, subject to existing valid rights and the requirements of applicable law:

MOUNT DIABLO MERIDIAN, CALIFORNIA

T. 39 N., R. 2 E.,
Sec. 16, SE¼NE¼ and E½SE¼.
T. 37 N., R. 3 E.,
Sec. 16, N½NE¼, SW¼NE¼, and SE¼NW¼.
T. 23 N., R. 4 E.,
Sec. 8, SE¼SE¼SE¼;
Sec. 9, SE¼SE¼;
Sec. 17, W½SW¼SW¼;
Sec. 19, NE¼, E½NW¼, NE¼SE¼, N½SE¼SE¼, and NE¼SW¼SE¼;
Sec. 29, E½NE¼SE¼, exclusive of patented M. S. 4413;
Sec. 30, W½NW¼NE¼.
T. 29 N., R. 11 E.,
Sec. 25, N½NW¼, less patented M. S. 6148, 6086, 5302, and 6462;
Sec. 30, lots 1 and 2, S½ of lot 6, and N½ of lot 7;
Sec. 33, SE¼SE¼;
Sec. 34, S½SE¼;
Sec. 35, NW¼SE¼.
T. 29 N., R. 12 E.,
Sec. 31, lot 4.
T. 20 N., R. 15 E.,
Sec. 5, lot 2 of NW¼;
Sec. 6, lots 1 and 2 of NE¼.
T. 25 N., R. 16 E.,
Sec. 15, NE¼NE¼, S½NE¼, and E½NW¼.
T. 18 N., R. 18 E.,
Sec. 7, lot 13.
T. 37 N., R. 4 W.,
Sec. 4, SW¼SW¼.

The areas described aggregate approximately 1,405.95 acres.

3. The lands are widely scattered throughout northern California and generally occupy foothill and mountainous regions. The character of the lands varies from gentle, moderately rolling slopes of the lava beds of eastern Shasta County, California, to steeper slopes lying above the west branch of Feather River, to the more or less open sagebrush plains east of the Sierra escarpment. The soil is for the most part various clays and sands derived from volcanic parent material and other igneous rocks. The vegetation varies from the pine covered slopes of the lower foothills of the Sierra Nevada to the sagebrush plains. Adverse topography renders the lands generally unsuitable for agricultural purposes other than grazing by livestock.

4. No application for the restored lands may be allowed under the homestead, desert land, small tract, or any other nonmineral public land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

5. Subject to any valid existing rights and the requirements of applicable law, the restored lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, presented prior to 10:00 a. m. on June 13, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on September 12, 1958, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on September 12, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on September 12, 1958.

6. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Sacramento, California.

ROGER ERNST,
Assistant Secretary of the Interior.

MAY 8, 1958.

[F. R. Doc. 58-3589; Filed, May 13, 1958; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Fish and Wildlife Service

[50 CFR Part 6]

MIGRATORY BIRDS

NOTICE OF PROPOSED RULE MAKING

Pursuant to section 4 (a) of the Administrative Procedure Act approved June 11, 1946 (60 Stat. 237), notice is hereby given that the Director, Bureau of Sport Fisheries and Wildlife, proposes to recommend the adoption by the Secretary of the Interior, under authority contained in section 3 of the Migratory Bird Treaty Act of July 3, 1918, as amended (40 Stat. 755; 16 U. S. C. 704), of amendments to Part 6, Title 50, Code of Federal Regulations, which will specify open seasons, certain closed seasons, hunting methods, shooting hours, and bag limits for migratory game birds.

The proposed amendments specifying open seasons and bag limits for migratory game birds, except waterfowl, coots and Wilson's snipe (but including scoter, eider and old-squaw ducks in open coastal waters beyond outer harbor lines in certain North Atlantic Coastal States and waterfowl, coots and Wilson's snipe in Alaska), and those relating to other matters will be proposed for final adoption not later than August 1, 1958, to become effective September 1, 1958. Proposed amendments specifying open seasons, bag limits, and shooting hours for other waterfowl, coots and Wilson's snipe will be proposed for adoption not later than September 1, 1958, to become effective not later than October 1, 1958.

On the basis of final decisions to be reached at the conclusion of studies now in progress, the said Director may recommend the adoption by the Secretary of other amendments to Part 6 to accomplish the following purposes:

1. Section 6.3 (b) (9) would be amended to make more clear what constitutes the illegal taking of migratory game birds by bait. No substantive change is contemplated in the section.

2. Section 6.6 (c) would be amended to make its provisions applicable to shipments within a State as well as into or out of the State.

3. Section 6.6 (d) would be amended to substitute the word "species" for the word "kinds". It is proposed to make a similar amendment wherever the word "kinds" when used in reference to migratory game birds, appears in the Regulations.

4. Section 6.7 (b) would be amended to make it clear that migratory game birds imported from Canada may be entered with or without the heads and feet attached.

5. Section 6.9 would be amended to include commercial picking establishments within the meaning of its provisions.

6. Section 6.11 would be amended to prohibit persons other than those with a permit from possessing or transporting live migratory waterfowl acquired in any lawful manner after September 1, 1958.

7. Sections 6.12 and 6.13 would be amended by combining the said sections and by making the provisions presently contained in § 6.13 with reference to the commercial use of feathers, applicable to all migratory game birds rather than to wild ducks and wild geese as is presently the case.

Interested persons are hereby afforded an opportunity to participate in preparation of the amended regulations to be adopted as set forth above, by submitting their views, data or arguments in writing to the Director, Bureau of Sport Fisheries and Wildlife, Washington 25, D. C., on or before June 20, 1958.

Dated: May 9, 1958.

D. H. JANZEN,
Director, Bureau of Sport Fisheries and Wildlife.

[F. R. Doc. 58-3588; Filed, May 13, 1958; 8:45 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 922]

VALENCIA ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

APPROVAL OF EXPENSES AND FIXING OF RATE OF ASSESSMENT FOR 1957–58 FISCAL YEAR

Consideration is being given to the following proposals submitted by the Valencia Orange Administrative Committee, established under the marketing agreement and Order No. 22, as amended (7 CFR Part 922), regulating the handling of Valencia oranges grown in Arizona and designated part of California, originally effective March 31, 1954, under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), as the agency to administer the terms and provisions thereof: (1) That the Secretary of Agriculture find that expenses not to exceed $170,000.00 will be necessarily incurred during the fiscal year November 1, 1957, through October 31, 1958, for the maintenance and functioning of the committee established under the aforesaid marketing agreement and order, as amended, and (2) that the Secretary of Agriculture fix, as the share of such expenses which each handler who first handles oranges shall pay during the fiscal year in accordance with the aforesaid marketing agreement and order, as amended, the rate of assessment of $0.0075 per carton of oranges handled by such handler as the first handler thereof during such fiscal year.

All persons who desire to submit written data, views, or arguments in connection with the aforesaid proposals should file the same with the Director, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Room 2077, South Building, Washington 25, D. C., not later than the 10th day after the publication of this notice in the FEDERAL REGISTER. All documents should be filed in quadruplicate.

As used herein, "handle," "handler," "oranges," "fiscal year," and "carton" shall have the same meaning as is given to each such term in said marketing agreement and order, as amended.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: May 9, 1958.

[SEAL] FLOYD F. HEDLUND,
Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 58-3623; Filed, May 13, 1958; 8:52 a. m.]

CIVIL AERONAUTICS BOARD

[14 CFR Parts 4b, 40, 41, 42, 43, 45]

[Draft Release 58-11]

EMERGENCY EXITS FOR AIRPLANES CARRYING PASSENGERS FOR HIRE

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety, notice is hereby given that the Bureau will propose to the Board the adoption of amendments to Special Civil Air Regulation No. SR–389A as hereinafter set forth.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, attention Bureau of Safety, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by July 15, 1958. Copies of such communications will be available after July 17, 1958, for examination by interested persons at the Docket Section of the Board, Room 5412, Department of Commerce Building, Washington, D. C.

Special Civil Air Regulation No. SR–389 (17 F. R. 9895) was adopted by the Civil Aeronautics Board on October 27, 1952, and became effective on the same date. This special regulation was promulgated by the Board because a study of existing type airplanes had indicated that in some instances the exit facilities had become marginal for the number of occupants carried and that further increases in occupancy should be more strictly related to the number of exits available. The study further revealed that even in some of the airplane types which were not considered marginal in this respect further increases in occupancy should not be permitted without the installation of additional exits.

On September 13, 1957, the Board adopted and made effective SR–389A (22